

Consumer Protection Act 68 of 2008

CONSUMER PROTECTION ACT 68 OF 2008

Fundamental consumer rights

- Equality in the consumer market
- Privacy
- Choice
- Disclosure and information
- Fair and responsible marketing
- Fair and honest dealing
- Fair, just and reasonable terms and conditions
- Fair value, good quality and safety
- Supplier accountability

Section 48 — Unfair, unreasonable or unjust contract terms

A supplier must not supply, offer to supply or enter into an agreement to supply goods or services on terms that are unfair, unreasonable or unjust, or require a consumer to waive any rights, assume any obligation, or waive any liability of the supplier on terms that are unfair, unreasonable or unjust.

Section 55–56 — Quality and implied warranty

Consumers have a right to safe, good quality goods. Goods are accompanied by an implied warranty of quality for at least six months, entitling the consumer to repair, replacement or refund at the supplier's election in certain circumstances.

Cooling-off and direct marketing

Consumers may rescind a transaction resulting from direct marketing within five business days without reason or penalty (s 16).

Enforcement

National Consumer Commission, National Consumer Tribunal, provincial consumer protection authorities, and ordinary courts.

NOTE: Educational summary for SA research demo.

— End of curated extract. Verify official text before reliance. —